

An Act

ENROLLED SENATE
BILL NO. 1436

By: Nice of the Senate

and

Roe of the House

An Act relating to hospitals; imposing certain duties on hospital in cases of fetal death or miscarriage; requiring the State Department of Health to develop and publish certain form; providing for codification; and providing an effective date.

SUBJECT: Hospital duties in cases of fetal death

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1-702g of Title 63, unless there is created a duplication in numbering, reads as follows:

A. When a fetal death occurs in a hospital, or when a woman presents to a hospital for treatment of a miscarriage, the hospital shall, prior to discharge:

1. Provide the woman or her designee with a physical or digital copy of the form described in subsection B of this section; and
2. Ensure that a hospital staff member verbally communicates that the woman or family may request the certificates listed on the form through the process described on the form.

B. The State Department of Health shall, for the purposes of this section, develop and publish on its public website a form that:

1. Explains the process for requesting a fetal death certificate under Section 1-318 of Title 63 of the Oklahoma Statutes and the process for requesting a certificate of birth resulting in stillbirth under Section 1-318.2 of Title 63 of the Oklahoma Statutes; and

2. Provides contact information for the Division of Vital Records of the Department.

SECTION 2. This act shall become effective November 1, 2026.

Passed the Senate the 25th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 28th day of April, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____